extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (Id., at 505.)

Counsel has prepared a detailed declaration explaining the fee methodology, the experience of counsel, and other factors, including the *Lodestar* factors. The Court finds that the fees are reasonable and approved.

Litigation costs of $18,510.90 are reasonable and are approved. Settlement administration costs of $7,250.00 are reasonable and are approved. The requested representative payments of $15,000 for plaintiff class representatives (Janowski and Webb-Turner) are reviewed now, under the criteria for evaluation of representative payment requests discussed in Clark v. American Residential Services LLC (2009) 175 Cal.App.4th 785, 804-807. Plaintiffs Janowski and Webb-Turner attest, in their declarations, that they spent at least 25 hours of their time on the case, and accepted undefined "risk" by doing so. Considering all of the factors, particularly the size of the settlement, the full requested payment is approved.

Conclusion and Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate, with the small reduction in the attorney's fees. The motion is **granted**.
2. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order.
3. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
4. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
5. The compliance hearing will be held in Department 16, the Honorable Benjamin Reyes. Counsel are directed to contact the court clerk to calendar a Compliance Hearing. If Counsel's compliance statement is acceptable, then the Court may issue an unreported minute order releasing the 5% retention of fees prior to the compliance hearing.
6. No appearance is required at the hearing on May 27, 2026.

8. 9:00 AM CASE NUMBER: C24-01041
CASE NAME: ADRIAN VASQUEZ VS. GOLDEN GATE MEAT COMPANY, INC.
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**
FILED BY: VASQUEZ, ADRIAN
TENTATIVE RULING:
Summary

Plaintiff Adrian Vasquez's Motion for Preliminary Approval of Class Action Settlement with Defendants Golden Gate Meat Company, Inc. ("GGMC"), Jimi-Z Offenbach, Patricia A. Offenbach, and Justin Offenbach ("Defendants") is approved as set forth herein. No appearance is required at the

May 27, 2026 hearing.

Background and Settlement Terms

The proposed settlement agreement between the Parties in this class action case establishes a Gross Settlement Amount of $600,000. The settlement encompasses all shares to be paid to Class Members who do not opt out, settlement administration fees not exceeding $10,000, a $10,000 Class Representative Incentive Payment award to Plaintiff subject to Court approval, a $60,000 Private Attorneys General Act (PAGA) settlement, and payment to Class Counsel Mallison & Martinez in the amount of $200,000 for reasonable litigation costs and attorneys' fees. The settlement was reached after thorough analysis of timekeeping and payroll data, representing informed compromises between both parties after considering the risks of litigation including potential defenses and complexities of proving damages.

The settlement structure ensures that no portion of the Settlement Payment will revert to Defendants. Any shares of Participating Class Members that remain uncashed after 180 days from issuance will be distributed to a *cy pres* recipient to be determined and approved by the Court. The payment schedule requires Defendants to pay twenty percent of the Gross Settlement Amount within 15 business days after final approval, with the remaining eighty percent to be paid within seven business days after the Effective Date.

The underlying action was filed on April 17, 2024, alleging multiple wage and hour violations including failure to pay contractual wages, minimum wage, overtime wages, meal and rest period violations, wage statement violations, and Unfair Competition Law violations on behalf of non-exempt employees. An amended complaint was filed on June 26, 2024, adding a claim for penalties under PAGA. The case was stayed pending case management conference, during which the Court ordered the parties to exchange information and attend mediation, which ultimately led to this settlement agreement.

The distribution plan allocates specific amounts from the Gross Settlement Amount: $10,000 to the Class Representative (in addition to their settlement share), reasonable attorneys' fees and litigation expenses to Class Counsel, $60,000 for PAGA claims settlement, and up to $10,000 for Settlement Administrator fees and expenses. After these deductions, the Net Settlement Amount will be distributed to all Participating Class Members on a pro rata basis, calculated by dividing the Net Settlement Amount by the total number of workweeks worked by each Class Member during the Class Period (April 17, 2020 to July 29, 2025).

For the PAGA claims portion, 25% of the $60,000 allocation (i.e., $15,000) will be distributed among Class Members employed during the PAGA Period (April 10, 2023 through July 29, 2025). This amount will be allocated pro rata based on the number of Pay Periods they were employed during the PAGA Period, in addition to their share of the Net Settlement Amount if they are also a Participating Class Member. The Settlement Administrator and Class Counsel will undertake reasonable efforts to ensure that Participating Class Members receive their Settlement Shares in this case.

Analyses

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra,* 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id*., at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of $5,000 for each plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

1. The settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. As such, the Motion is **granted**.
2. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date.
3. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with

Code of Civil Procedure section 384(b).

4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney's fees are to be withheld by the administrator until released by the Court after review of the compliance statement. The Court may issue a release through an unreported minute order without a hearing on the compliance statement.
5. No appearance is required at the May 27, 2026 hearing.

9. 9:00 AM CASE NUMBER: C24-02285
CASE NAME: DARRIN OHLHAUSER VS. TAILGATERS SPORTS BAR & GRILL
***HEARING ON MOTION IN RE: ORDER SUBSTITUTING SUCCESSOR IN INTEREST**
FILED BY: OHLHAUSER, DARRIN
<u>*TENTATIVE RULING:*</u>

Plaintiffs Nita Ohlauser, successor in interest to Darrin Ohlhauser, deceased, filed a Motion for Order Substituting Successor in Interest. The Motion seeks to name decedent's spouse, Nita Ohlhauser as the proper success in interest pursuant to Cal. Code of Civ. Proc. § 377.30. This Motion is unopposed and is therefore **<u>granted</u>**.

The Court will execute the proposed order lodged on December 2, 2025. No appearance is required at the hearing on May 27, 2026. The Court sets a further case management conference for November 24, 2026 at 8:30 a.m. The parties are ordered to file a further Case Management Conference Statement.

10. 9:00 AM CASE NUMBER: C24-02414
CASE NAME: DELLYON ROBINSON VS. FCI LENDER SERVICES, INC.
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: FCI LENDER SERVICES, INC.
<u>*TENTATIVE RULING:*</u>

Defendant FCI Lender Services, Inc.'s motion for judgment on the pleadings is **granted with leave to amend**.

Plaintiff alleges that Defendant was the loan servicer on his mortgage, but Defendant refused to provide a reinstatement quote when requested. (Comp. ¶15.) Plaintiff sued Defendant for (1) breach of the implied covenant of good faith and fair dealing, (2) violation of Civil Code section 2924c and (3) violation of Business and Professions Code section 17200. Defendant filed this motion for judgment on the pleadings as to each of the three causes of action on the ground that the facts alleged do not state sufficient facts to constitute a cause of action.

Collateral Estoppel

Defendant argues that Plaintiff is collaterally estopped from bringing these claims because he agreed to a stipulated judgment in an unlawful detainer action. In opposition Plaintiff argues both the merits of collateral estoppel and that judicial estoppel precludes Defendant's argument.

Judicial estoppel occurs " 'when "(1) the same party has taken two positions; (2) the positions